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Candy, snacks face California makeover

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Halloween candy could be in for a California makeover.

Asserting that the Food and Drug Administration has not moved quickly enough on dangerous food additives, state lawmakers last month passed the California Food Safety Act, which bans four ingredients found in popular snacks and packaged foods — including candy corn and other Halloween treats.

Consumer health advocates hope the ban, signed into law by Democratic Gov. Gavin Newsom on Oct. 7 and set to take effect in 2027, will lead confectioners and food producers to modify their recipes for products sold both in California and elsewhere around the country.

The law prohibits the manufacture and distribution of brominated vegetable oil, potassium bromate, propylparaben, and red dye No. 3, which are used in processed foods including variations of instant potatoes and store-brand sodas, as well as candies. The additives have been linked to increased risks of cancer and nervous system problems, according to the Environmental Working Group, which sponsored the legislation, and are already banned in many other countries.

Melanie Benesh, vice president of government affairs for the Environmental Working Group, celebrated the new law as "a very big deal" and the first of its type in the country.

Food manufacturers and their lobbyists opposed the legislation, rejecting the idea that the four additives are unhealthy and arguing that such assessments should be made by the FDA.

"We should rely on the scientific rigor of the FDA in terms of evaluating the safety of food ingredients and additives," said Christopher Gindlesperger, a spokesperson for the National Confectioners Association.

But food safety advocates say the FDA has moved far too slowly in regulating food chemicals.

"It's unacceptable that the U.S. is so far behind the rest of the world when it comes to food safety," state Assembly member Jesse Gabriel, D-Woodland Hills, who introduced the bill along with Assembly member Buffy Wicks, D-Oakland, said in a statement.

A letter sent to lawmakers from the sponsors of AB418 this year noted that many new additives put in food products are not reviewed by the FDA before reaching the market. A provision in federal law called "generally recognized as safe" allows the industry to designate the chemicals as safe enough to include in food, even without notifying the agency.

FDA spokesperson Enrico Dinges, referencing the Federal Food, Drug, and Cosmetic Act, noted in an email that "food and color additives must be approved for their intended conditions of use, and safety information must be available to establish a reasonable certainty of no harm before they are used in products on the market."

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